



File No: EXP202302841

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right to erasure against GOOGLE LLC (hereinafter, the respondent).

The claimant states that the respondent search engine denies the request made for the removal of the search results from the following link that results from the search carried out by his name and surname: ***URL.1.

It contains a notification of the resolution of the minor offenses trial XXX/XXXX by which the claimant is acquitted of (...), dated ***DATE.1.

Along with the complaint, the claimant submits communication from the respondent search engine, dated January 26, 2023, denying the request made by the claimant, arguing that "(...) once a balance has been made between the interests and rights related to the content in question, including factors such as the continued publication of the content by a public body, Google has decided not to block it." The claimant alleges that the aforementioned denial, concerning the controversial result of the publication of the notification of a resolution of a minor offenses trial with an acquittal ruling from more than ten years ago, causes him reputational harm.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Google states that the claimed URL, ***URL.1, refers to the publication in the Official Bulletin of Cantabria in November 2012, of a notification edict, due to being unknown whereabouts, of the resolution of the court of ***COURT.1, which determines the acquittal of the claimant.

They consider that there is public relevance as it has been published in an official bulletin.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests were satisfied. Consequently, on April 19, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent a hearing process, so that within ten working days, it could present the allegations it deemed appropriate, stating, in summary, that "Google LLC has re-examined the content of the web pages to which the disputed search result refers and has reconsidered its initial decision. Consequently, Google LLC has proceeded to block the request made by Mr. A.A.A."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish

Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that it had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the claimant's requests were satisfied. Consequently, on April 19, 2023, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data...

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The Data Protection Authority agreed to admit the claim presented. This admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated by Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim to be accepted."

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the claimant.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to address such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to be forgotten

The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, concerning the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

"1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search carried out based on their name the links published that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information. Similarly, action must be taken when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service.

This right shall persist even when the retention of the information published on the website to which the link directs is lawful and it has not been deleted beforehand or simultaneously."

As stated in the Supreme Court Judgment of January 11, 2019, "This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from respect for other fundamental rights apply, among which the freedom of information proclaimed in Article 20 of the Constitution is of particular relevance."

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates the internet user's access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014 states the following:

Paragraph 28: (...) "by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it subsequently extracts, records, and organizes in the...

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framework of its indexing programs, retains on its servers and, where applicable, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered in Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data.

Paragraph 33: "However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out in this context, and consequently, must be considered responsible for such processing under the aforementioned Article 2, letter d."

Paragraph 35: "In this regard, it should be noted that the processing of personal data carried out in the context of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying that data on a webpage, and is added to it."

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the search engine without going to the website operator, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (case C-131/12), stated:

"(...) data processing (...) carried out by the operator of a search engine, can significantly affect the fundamental rights to respect for private life and to the protection of personal data when the search carried out using that search engine is based on the name of a natural person, since such processing allows any internet user to obtain through the list of results a structured view of the information relating to this person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without that engine, would not have been interconnected or would have been very difficult to do so, and thus allows the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which gives the information contained in such a list of results a ubiquitous character (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45)."

"The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union."

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"(...) in order to respect the rights established by these provisions, provided that the requirements set forth therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained from a search conducted using a person's name links to web pages published by third parties that contain information relating to that person, even in the event that this name or this information is not deleted beforehand or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself."

Consequently, the processing of personal data carried out by the search engine operator allows for a "name" to yield a list of results that provide information about a person that may affect their private sphere. Once the interested party has submitted their request for the deletion of their personal data to the search engine, it must examine it and proceed, if applicable, to delete the specific links from the list of results, without the need to previously or simultaneously contact the website owner.

Furthermore, it also follows from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the weighing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that the so-called "right to digital oblivion," which is a specification in this field of the rights derived from the quality requirements for the processing of personal data, does not allow each individual to construct a past to their liking, obliging web page editors or search engine operators to delete the processing of their personal data when associated with facts that are not considered positive.

It also does not justify that those who publicly expose themselves can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, removing negative information from the Internet, "positioning" the results of Internet searches as they wish, so that the most favorable ones occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country."

The doctrine reflected in the ruling of the National Court, of June 21, 2019, is also relevant, which specifies, in its fifth legal basis, the following, in relation to information related to the professional life of

the interested party:

(...) "General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in accessing information in a search concerning a person's name and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is...

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justified by the predominant interest of the public in having, as a result of this inclusion, access to the information in question.

In the case at hand, entering into the weighing of the rights and interests at stake, it must first be noted that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant for modulating the intensity that the protection of the right regulated in Article 18.4 of the Constitution should merit, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.

In this regard, it is appropriate to refer to the guidelines of the Working Group of the 29th on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on "Google Spain and Inc v. AEPD and Mario Costeja C-131/12), which states: "There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it relates to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)"

When the information refers to private individuals, the Constitutional Court has declared that "even when the news concerning the subject matter relates to public interest, not all of its content is protected by the freedom of information—in this case, freedom of expression—, but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or privacy of the concerned person and that are revealed as 'manifestly unnecessary and irrelevant to the public interest of the information'" (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time elapsed. On this issue, the National Court declared in its judgment dated November 8, 2017, the following: "Moreover, unlike the first link, an excessive amount of time has not elapsed between the date the cancellation request was made to the search engine and the date of publication of the news. Indeed, since the date the news was published (August 2011) and the date the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the terms that apply in this case and as previously stated, does not affect this conclusion."

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: "even an initially lawful processing of accurate data may become, over time, incompatible with that Directive when such data is no longer necessary in relation to the purposes for which it was collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer pertinent or are excessive in relation to these purposes and the time elapsed."

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Conclusion

Once the documentation in the file has been examined, it is observed that, although it is true that the respondent denied the right to erasure of a URL exercised by the claimant, considering that it referred to information that seemed to present public relevance and interest, during the processing of the present procedure, it has reconsidered its decision and has proceeded to block the requested URL that is indexed with the search of the claimant's data.

Therefore, with the new measures adopted by the respondent, the rights of the affected party are duly restored and, consequently, it is appropriate to uphold the present claim on formal grounds, as the request has been addressed extemporaneously, without the need for additional actions.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds, the claim made by Mr. A.A.A. against GOOGLE LLC.

However, it is not appropriate to issue a new certification by the respondent, as the response was issued extemporaneously, without the need for additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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